

POTRAZ DATA CONTROLLER LICENCE

Step-by-Step Application Checklist — Cyber and Data Protection Act [Chapter 12:07]
· SI 155 of 2024

Document ID	VAKA-REG-001 · v1.0 · 16 July 2026
Applicant	VAKA OS — Dr. Washington Kapapiro (Owner)
Regulator	POTRAZ — Postal and Telecommunications Regulatory Authority of Zimbabwe (the Data Protection Authority)
Related documents	Legal Sign-Off Pack (VAKA-LEG-001) · Rollback Criteria (OPS-RC-001)

Why this matters

Under SI 155 of 2024, any entity that determines the purpose and means of processing personal data must hold a data controller licence from POTRAZ. The compliance deadline for existing controllers was **12 March 2025** — VAKA is applying after that deadline, and processing personal data without a licence is an offence (fine up to level 11 and/or imprisonment). **Treat this application as urgent, begin it before the pilot launches, and disclose the timing position to your lawyer** (Question 1 in the Legal Sign-Off Pack asks exactly this).

Key facts at a glance

Application form	Form DP1, downloaded from potraz.gov.zw (plus the self-assessment eligibility tool on the same site)
Application fee	US\$30
Licence tiers	Tier 1: 50–1,000 data subjects · Tier 2 and 3: intermediate bands · Tier 4: over 500,000. Fees approx. US\$50 (T1), US\$300 (T2), US\$500 (T3), up to US\$2,000–2,500 (T4) — confirm current figures with POTRAZ on submission
Decision window	POTRAZ must approve or reject within 14 days
Validity	12 months; renewal application due at least 3 months before expiry
DPO requirement	A certified Data Protection Officer must be appointed and notified to POTRAZ; certification via the POTRAZ-recognised course at the Harare Institute of Technology (HIT)
Breach duties	Report breaches to POTRAZ within 24 hours; notify affected individuals within 72 hours where risk is high

Phase 1 — Prepare (target: this week)

- ☐ **1.1 Confirm the applicant entity.**
Decide which registered entity applies (the same entity that will contract with pilot tenants — see Legal Pack §7.1). Gather: certificate of incorporation, CR14/CR6 or current equivalents, proof of address, and the responsible person's ID.
- ☐ **1.2 Map your data (one page).**
List: categories of personal data VAKA processes (tenant staff details; tenants' customers and suppliers), whether any is sensitive data (financial history is expressly included in the Act's definition of personal information), estimated number of data subjects at pilot scale, and where the data is stored — Zimbabwe or abroad. Form DP1 asks for safeguards and storage location, so write down your security measures (encryption, access control, backups, audit logs) in plain language.
- ☐ **1.3 Determine your tier.**
Count total data subjects (tenant staff + individuals in tenants' customer/supplier records). At pilot scale with 1–2 tenants you are almost certainly Tier 1 (50–1,000 data subjects, ±US\$50 licence fee). Record the count and the basis for it — you must upgrade tiers as the platform grows.
- ☐ **1.4 Run the POTRAZ self-assessment.**
Complete the licensing eligibility self-assessment tool on the POTRAZ website (potraz.gov.zw, Data Protection section) and keep a copy of the result with this checklist.
- ☐ **1.5 Brief your lawyer.**
Send the Legal Sign-Off Pack (VAKA-LEG-001). Ask specifically: (a) may the pilot launch while the application is pending, given the lapsed March 2025 deadline; (b) controller vs processor characterisation; (c) cross-border position if hosting is outside Zimbabwe.

Phase 2 — Appoint and certify the Data Protection Officer

The DPO must be appointed before the licence application is complete. The DPO can be you or a staff member (e.g. Mr. Anthony Kakurira) with a relevant qualification — data science, analytics, information security, audit or similar.

- ☐ **2.1 Appoint the DPO in writing.**
A one-page letter of appointment naming the DPO, signed by you as Owner. File it in the Compliance Vault (CERTIFICATES_LICENCES).
- ☐ **2.2 Enrol the DPO on the certification course.**
Download the data protection course application form from the Harare Institute of Technology (hit.ac.zw), submit it with the ±US\$30 application fee. On acceptance, tuition is ±US\$1,250 for the roughly two-week course, ending in a 4-hour examination. Confirm current intake dates and fees directly with HIT/POTRAZ — they change between intakes.
- ☐ **2.3 Obtain the Data Protection Certificate.**
Issued on passing the exam. File a copy in the Compliance Vault. Note: SI 155 also requires ongoing professional development to keep the DPO's certification current — add an annual task to the Management Calendar.
- ☐ **2.4 If course timing blocks you:**
Ask your lawyer whether POTRAZ will accept the licence application with the DPO appointed and enrolled (certification pending). Get that answer in writing before relying on it.

Phase 3 — Notify POTRAZ and submit Form DP1

☐**3.1 Send the DPO notification to POTRAZ.**

Formal notification containing the appointed (and, when done, certified) DPO's details, plus the nature and extent of the data VAKA collects (from your Step 1.2 data map).

☐**3.2 Download and complete Form DP1.**

From potraz.gov.zw. Use the current form on the website — the version printed in the Regulations has been varied. Answer using the data map: sensitive data categories handled, safeguards implemented, and whether data is stored in Zimbabwe or another country.

☐**3.3 Attach supporting documents.**

Entity registration documents, DPO appointment letter and certificate (or proof of enrolment if the lawyer confirmed 2.4), the self-assessment result, and any annexure Form DP1 requires.

☐**3.4 Pay the US\$30 application fee and submit.**

Submit per the instructions on the POTRAZ site/form. Keep proof of payment and a full copy of everything submitted. Record the submission date here: _____

Phase 4 — Decision, payment and licence

- ☐ **4.1 Track the 14-day decision window.**
POTRAZ must respond within 14 days. Diarise submission date + 14; if no response, follow up in writing and copy your lawyer.
- ☐ **4.2 On approval, pay the tier licence fee.**
±US\$50 for Tier 1. Keep the receipt.
- ☐ **4.3 Receive the licence and file it.**
Upload to the Compliance Vault (CERTIFICATES_LICENCES) and record the expiry date here:

- ☐ **4.4 Load the renewal into the Management Calendar.**
Renewal must be filed at least 3 months before expiry. The LP-009 seeded task 'POTRAZ data controller licence renewal' has reminders at 90/60/30/7 days — set its anchor date from the licence expiry recorded above.
- ☐ **4.5 If rejected:**
Obtain reasons in writing, remediate with your lawyer, and reapply. Do not onboard pilot tenants while unlicensed unless your lawyer has advised in writing that you may.

Phase 5 — Live obligations (ongoing, once licensed)

- ☐ **5.1 Breach reporting readiness.**
24 hours to POTRAZ, 72 hours to affected individuals for high-risk breaches. Your Rollback Criteria (OPS-RC-001, trigger T1) already assumes tenant notification within 24h — confirm final wording with the lawyer so one incident procedure satisfies both.
- ☐ **5.2 Keep the data map current.**
New modules (payroll, HR) change your data categories and possibly your tier. Review at every module launch and at renewal.
- ☐ **5.3 DPO continuous development.**
Annual CPD to maintain certification — Management Calendar task.
- ☐ **5.4 Tier review at growth milestones.**
Crossing 1,000 data subjects moves you out of Tier 1 — count data subjects quarterly during growth.

Progress record

Phase	Completed on	Completed by	Evidence filed in Vault?
1 — Prepare			
2 — DPO appointed & certified			
3 — DP1 submitted			
4 — Licence received			
5 — Ongoing obligations set up			

Important notes

Fees, forms, course dates and submission channels change — verify each figure on potraz.gov.zw at the moment you act, and treat your lawyer's written advice as authoritative over this checklist. This document is prepared from the Cyber and Data Protection Act [Chapter 12:07], SI 155 of 2024, and published professional guidance current as at 16 July 2026; it is an operational checklist, not legal advice.